

From: [BleedingHearts Admin](#)
To: [ostp-ai-rfi](#)
Subject: [External] AI Action Plan
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From Bleeding Hearts, an organization supporting humanitarian discourse, including environmental and cultural sustainability:

While OpenAI treats educating its algorithm as a unique undertaking, US educational institutions have long used copyrighted material through legal licensing to teach students across the nation. Why should an AI company be an exception to these established practices & laws? Legal & financial recognition of intellectual property in the US has facilitated innovation, artistry, & expansive ideas that have revolutionized lives. While OpenAI claims to do the same, it also claims it cannot achieve its goals without theft—neither through collaboration nor legal licensing. While OpenAI seeks to add value to their product, they seem to seek to exploit the millions of creators & companies that have established their own value while respecting the current trademark, copyright, and licensing laws. Why should the government be responsible for OpenAI's failings? Considering OpenAI cannot achieve its goals within the means of the law, it suggests that the business and concept are not sufficiently developed for its purported application. A government "bail-out" of ANY kind to START a business does not bode well for the future prospects of said business.

We have shared these words with others in the hopes of encouraging discourse and comment on this issue. However, we would like to add to this statement, addressing the US government's concerns re: AI dominance in the global arena:

The current product touted as "generative AI" is as undercooked as cryptocurrency. The European Union has already recognized how current technology is poorly developed to sustain itself without cannibalizing industries and undermining market assets, including proper financial exchange as well as conventional competition and innovation. While companies such as Microsoft and Google have demonstrated interest in AI, their own established products (particularly search and mail clients) have demonstrated that their algorithms have sufficient access WITHIN THE TERMS OF THE LAW to not only adequately serve the populace, but inspire greater innovation and application on the developers' parts. In light of such a tradition of American engineering, the request from AI companies to preclude the law feels like a request to the government to wipe their butts, to turn in incomplete work and get a pat on the back. If a company cannot afford a collaboration with an established library of works or individual licensing agreements, then how is their financial mismanagement the government's problem? If the US wishes to achieve AI dominance, not indulging these companies and investing in labs that continue to pursue AI development within the means of the law instead seems the best course of action.

Thank you,
Bleeding Hearts

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